

Form 27C—Intervener’s submissions

IN THE HIGH COURT OF AUSTRALIA
SYDNEY REGISTRY

M 50 of 2026

BETWEEN:

WHITE AUSTRALIA PARTY INC.

First Plaintiff

and

COMMONWEALTH OF AUSTRALIA

First Defendant

INTERVENER’S SUBMISSIONS

PART I: CERTIFICATION

1. These submissions are in a form suitable for publication on the internet.

Part II: BASIS

2. The plaintiffs are putting 3-5 questions to the HIGH COURT.
3. The intervener is a member (**Trustee of National Centrism**) of an unincorporated not-for-profit association that promotes the political ideology of “**NATIONAL CENTRISM**”.¹ It intends to listen, inform and influence Australian politics.
4. It has overlapping policies with WHITE AUSTRALIA PARTY:
 - a. Proposing a 70:30 solution for White to non-White ancestry in the national genetic origin pool for future Australia. Racial Equality means equal numbers of major human subspecies across the Earth.

Part III: LEAVE

5. Early organisation of a competing, popular Australian political ideology.

¹<https://nationalcentrism.org/>

Part IV: ISSUES

6. The Plaintiffs are challenging an amendment known as Part 5.3B of the *Criminal Code Act 1995* (Cth).
7. Section 114A.3 “Definition of hate crime” is contended.

Hate

8. Hate is an emotional state.

Constitution

9. Is Part 5.3B valid (ie. laws made “for the peace, order, and good government”: Commonwealth Constitution, Part V, section 51)?
10. Criminalising natural human expression would impede on implied freedom of political communication and freedom of speech (with **special exceptions**).

Policy

11. You do not have the right to intend harm with your communication, the law does not permit you to harm people with words, transmitting energy from your throat or mind to harm.
12. Harm speech is not free speech.

Is it crime?

13. It is not clear how the display of a “Nazi symbol” or making a salute has any communication of harm. Could it be forcing citizens to be considerate or even responsible of others’ potential, assumed, actual, perceived post-traumatic stress symptoms?

Part V: PRESENTATION

14. Supplementary on-papers filed written submissions.

Dated 21 August 2026



Anton Tutoveanu

The Trustee for NATIONAL CENTRISM

ABN 82 807 350 089